

ORDER SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

W.P.No.12649 of 2026

Asifa Khalid Vs. ASJ/Ex-officio Justice of Peace etc.

Sr. No. of order of proceeding	Date of order of proceeding	Order with signature of Judge, and that of Parties of counsel, where necessary
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26.03.2026	Mr. Qaiser Abbas Bhatti, Advocate for the petitioner. Mr. Adnan Javed, Advocate for respondent No.3. Mr. Imran Abbas Sahi, Assistant Advocate General Punjab with Ghulam Mursaleen Deputy Director, Asim Ali Assistant Director (Legal) and Atif Raza Circle Officer from Anti-Corruption Establishment.
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By way of the instant petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner Asifa Khalid, calls into question the legality and validity of the orders dated 26.08.2025 and 27.01.2026 passed by the Ex-officio Justice of Peace/Additional Sessions Judge, Lahore.

2. The facts essential for the just adjudication of the instant constitutional petition are that respondent No.3 namely Muhammad Shahid Azeem instituted an application under Sections 22-A & 22-B, Cr.P.C. before the Ex-officio Justice of Peace, Lahore. In the said application, it was averred that respondent No.3 had proceeded abroad for the purpose of earning his livelihood and had contracted marriage with the petitioner Mst.Asifa in the year 2001. Out of the said wedlock, two daughters and one son were born, who are presently residing in the custody of the petitioner. In the year 2017 respondent No.3 returned to Pakistan and purchased a residential house situated in Johar Town, Lahore, which was subsequently transferred in the name of his wife, i.e., the petitioner. Respondent No.3 further asserted that he had purchased a vehicle i.e. Toyota Yaris, in the year 2021 and had engaged one Khalid Nawaz (a proposed accused) as a driver, who used to accompany his wife to the market. The petitioner without obtaining a lawful dissolution of her marriage with respondent No.3, allegedly contracted another

marriage with said Khalid Nawaz, resultantly from the said union, a male child was born in October, 2023 and the petitioner, in connivance with the aforesaid Khalid Nawaz, fabricated a divorce deed purportedly on behalf of respondent No.3, submitted the same before the Secretary, Municipal Committee who without issuing any notice to respondent No.3, initiated proceedings and issued a divorce certificate dated 11.04.2025. Respondent No.3 subsequently approached the office of the Municipal Committee, Ferozewala, to inquire into the matter, where he was informed that an application for issuance of a divorce effectiveness certificate had been submitted, however, no satisfactory explanation was furnished by the concerned authority. Furthermore, on 12.09.2023 the petitioner had renewed her Computerized National Identity Card with the assistance of respondent No.3, reflecting the subsistence of their marital relationship and had also obtained a B-Form for their son, namely Arham Shahid, on 08.02.2023 from the office of NADRA, supported by an affidavit affirming their marital status. Thereafter, respondent No.3 lodged a complaint bearing No.C-492/25 before the Director General, Anti-Corruption Establishment, Lahore (respondent No.2) seeking initiation of legal proceedings against the alleged culprits for registration of a criminal case. Upon failure of the said authority to take action, respondent No.3 filed an application under Section 22-A & 22-B Cr.P.C. before the Ex-officio Justice of Peace, Lahore, seeking direction for registration of a criminal case against the delinquents. Consequently, the Ex-officio Justice of Peace, Lahore, vide order dated 26.08.2025, directed the Anti-Corruption Establishment Authorities to conduct a comprehensive inquiry after affording an opportunity of hearing to all concerned parties, summoning the relevant record from the departments concerned, and examining both oral as well as documentary evidence. It was further directed that, upon an objective appraisal of the true facts and circumstances of the case, the inquiry be concluded strictly in accordance with law, and, in the event that sufficient material or evidence was found substantiating the

allegations against the proposed accused, appropriate proceedings be initiated against them in accordance with the Rules, including the registration of an FIR, within a period of thirty days. Upon inaction on the part of the Director General, Anti-Corruption Establishment, Lahore, respondent No.3 once again approached the Ex-officio Justice of Peace, Lahore, by filing another application under Section 22-A & 22-B, Cr.P.C. seeking implementation of the earlier order dated 26.08.2025. The Ex-officio Justice of Peace, Lahore, vide order dated 27.01.2026, disposed of the said application with a direction to the Director General, Anti-Corruption Establishment, Lahore, to examine the matter and to proceed in accordance with law by proposing either criminal or departmental proceedings against the alleged delinquents, hence the instant petition.

3. Arguments heard. Record perused.

4. It is evident from a careful perusal of the record that respondent No.3, namely Muhammad Shahid Azeem, approached the Ex-officio Justice of Peace, Lahore by invoking the jurisdiction under Section 22-A & 22-B, Cr.P.C. seeking issuance of direction to the Director General, Anti-Corruption Establishment, Lahore for the registration of a criminal case against the petitioner and others. In the said application, it was, inter alia, alleged that one Khalid, who had been employed by respondent No.3 as a driver for his wife i.e. the petitioner contracted marriage with her during the subsistence of her valid and lawful marriage with respondent No.3. It was further alleged that, with a view to circumvent legal consequences, the petitioner by forging the thumb impressions and signatures of respondent No.3, prepared a fictitious divorce notice and presented the same before the Secretary, Municipal Committee, Ferozewala, who on the basis thereof, proceeded to issue a divorce certificate dated 11.04.2025, notwithstanding the fact that no divorce had ever been pronounced by respondent No.3. Upon receipt of the aforesaid application, the Ex-officio Justice of Peace, Lahore, vide order dated 26.08.2025 directed the Assistant Director, Anti-Corruption

Establishment, Lahore to conduct an inquiry strictly in accordance with law and, in the event that sufficient incriminating material was found against the proposed accused, to take further steps, including the registration of a criminal case, within a period of thirty days. For facility of reference, the relevant portion of the order dated 26.08.2025 is reproduced hereinbelow:-

“In view of above said report, the petitioner is directed to approach Enquiry Officer/Assistant Director (Inv-II) Anti-Corruption Establishment Lahore Region-B, Lahore along with all certified documentary material with him, coupled with the instant order of this forum, while said Enquiry Officer shall hold the inquiry, hear both the parties, summon record from the concerned department, entertain the oral as well as documentary evidence and thereafter on the basis of true facts and circumstances, conclude the inquiry in accordance with law and if found reasonable evidence/proof against the proposed accused, involvement as per allegations levelled in the application, **then proceed according to rules against officials/proposed accused with some reasons including registration of FIR within thirty days.** With these observations the instant petition stands disposed of.
(emphasis supplied)

Insofar as the application filed by respondent No.3 under Section 22-A(6) Cr.P.C., seeking registration of a criminal case against the proposed accused, is concerned, an Ex-officio Justice of Peace is vested with the authority to issue appropriate directions to the concerned police authorities upon receipt of a complaint pertaining to:-

- (i) Non-registration of a criminal case;
- (ii) Transfer of investigation from one police officer to another; and
- (iii) Neglect, failure or excess committed by a police authority in relation to its functions and duties.

However, a plain reading of the aforesaid provision reveals that it does not envisage or confer jurisdiction upon the Ex-officio Justice of Peace to issue directions in matters pertaining to allegations of corruption against public servants. Such matters are governed by a distinct statutory framework i.e. the Punjab Anti-Corruption Establishment Rules, 2014, which prescribe a specific procedure and vest exclusive authority in the Anti-Corruption Establishment for the initiation and registration of cases. Before advertng further to the merits of the controversy, it would be

advantageous to reproduce hereunder Rule 6 of the Punjab Anti-Corruption Establishment Rules, 2014:-

“6. Registration of case etc. (1) If the facts so warrant, the Establishment may register a criminal case against the accused public servant under the Prevention of Corruption Act, 1947 (II of 1947) and under such sections of the Pakistan Penal Code, 1860 (XLV of 1860) as are mentioned in the Schedule appended to the Ordinance.

(2) Subject to sub-rule (3), no criminal case shall be registered under sub-rule (1) unless approved in writing by the officer of the Establishment mentioned below against each category:

(a) Public servants in BPS-1 to BPS-16 Not below Deputy Director

(b) Public servants in BPS-17 & BPS-18 Not below a Director

(c) Public servants in BPS-19 & above Director General.

(3) Subject to sub-rule (4), no case shall be registered against a District Coordination Officer of a District Government, a Commissioner of a Division, a Secretary to the Government, a Head of an Attached Department, and any other officer of BPS-20 and above without the prior permission in writing of the Chief Minister but in case any of those officers is in BPS-19, such permission may be accorded by the Chief Secretary.

(4) No permission shall be required for registration of a case against a public servant caught as a result of trap arranged by the Establishment under the supervision of a Magistrate, in the act of committing an offence specified in the Schedule to the Ordinance but in that case a report shall immediately be made to the Chief Secretary, the Administrative Secretary and the immediate supervisory officer of the public servant concerned if he is in BPS-16 and above and to the appointing authority and the immediate supervisory officer if the public servant is in BPS-15 and below.

(5) If the competent authority under sub-rule (2) decides not to register a case, it shall record reasons there for.

(6) On completion of an enquiry:

(a) if the allegations are not substantiated, the enquiry shall be dropped under-written orders of the authority mentioned in sub-rule (2) or sub-rule (3) of rule 6 and intimation to that effect shall be sent to the concerned public servant and his departmental authorities; and

(b) if sufficient evidence is not available for registration of a case but there is a reasonable evidence on record for initiation of disciplinary action against the public servant, the authority mentioned in sub-rule (2) or sub-rule (3) of rule 6 shall refer the matter along with the complaint and complete record of enquiry and findings to the concerned departmental authority for disciplinary action under the law for the time being in force.”

(emphasis supplied)

A careful perusal of the above-referred provisions leaves no manner of doubt that, in terms of Rule 6(6)(a) and (b) of the Punjab Anti-Corruption Establishment Rules, 2014, where the allegations remain unsubstantiated, the inquiry is to be dropped

through a reasoned order passed by the competent authority specified therein, with due intimation to the concerned public servant as well as to his departmental authorities. Likewise, in cases where the material available falls short of justifying the registration of a criminal case, yet discloses sufficient basis for initiating departmental proceedings, the matter is required to be referred by the competent authority to the relevant departmental forum for appropriate action in accordance with law. In view of the above legal position, it stands manifest that although the Ex-officio Justice of Peace may, in an appropriate case, direct the Anti-Corruption Establishment to conduct an inquiry for the purposes of examining the viability of registration of a criminal case, yet he is not vested with the jurisdiction to straightaway direct the registration of FIR. Furthermore, no authority is conferred upon the Ex-officio Justice of Peace to prescribe a specific timeframe for such registration. While examining the case in hand in the backdrop of the aforesaid legal framework, it transpires that in compliance with the order dated 26.08.2025, the Assistant Director (Investigation) conducted a thorough inquiry, afforded due opportunity of hearing to all concerned parties and subsequently submitted a final report dated 24.09.2025, wherein it was recommended that the inquiry be dropped on the ground that the allegations could not be substantiated. The said recommendation was duly concurred with by the Regional Director, Anti-Corruption Establishment, Lahore, who accordingly ordered closure of the inquiry against the proposed accused, including the petitioner. The record further reveals that, while passing the impugned order dated 27.01.2026, the Ex-officio Justice of Peace himself acknowledged that a detailed inquiry had been conducted by the inquiry officer, during which the two daughters of the parties, being *sui juris* unequivocally stated that respondent No.3 had pronounced oral divorce upon the petitioner. In the presence of such categorical statements, the observation of the Ex-officio Justice of Peace that no record of

divorce was available appears to be wholly misconceived and lacking any legal foundation.

5. In the backdrop of the aforesaid circumstances, the question of considerable legal significance arises for determination is whether after the inquiry which had attained finality upon its closure by the competent authority, the Ex-officio Justice of Peace, Lahore, was justified in effectively reopening the matter through order dated 27.01.2026 passed on a subsequent application under Section 22-A & 22-B Cr.P.C., ostensibly for the implementation of the earlier order dated 26.08.2025. Before proceeding further, it would not be out of context to mention here that the Ex-officio Justice of Peace while dealing with the cases relating to the local police is empowered to guard his orders and directions and if the police officials found responsible for any such neglect, etc. must be dealt with severally and initiation of departmental proceedings be also recommended. Reliance in this context may be placed upon the cases reported as Sadaqat Ali v. Additional Sessions Judge/Justice of Peace, Gujranwala and 6 others (2013 PCrLJ 630), Muhammad Hanif v. Deputy Superintendent of Police, P.S. Naulakha, Lahore and 2 others (2008 MLD 1158), Muhammad Sadiq Hussain v. SHO Multan and 2 others (2006 YLR 2896) and Khizer Hayat and others v. Inspector General of Police (Punjab), Lahore and others (PLD 2005 Lahore 470).

However, while dealing with matters involving offences punishable under the provisions of the Prevention of Corruption Act, 1947, the jurisdiction of the Ex-officio Justice of Peace, while entertaining applications under Section 22-A & 22-B Cr.P.C., is circumscribed to the extent that he may, at best, direct the Anti-Corruption Authorities to initiate an inquiry against the proposed accused. In the present case, as noted earlier, once the competent authority i.e. the Regional Director, Anti-Corruption Establishment, upon concurring with the findings of the Assistant Director, ordered the dropping of the inquiry proceedings, respondent No.3 had an adequate and efficacious remedy available

to him in the form of approaching the Director General, Anti-Corruption Establishment, in terms of Rule 15(2) of the Punjab Anti-Corruption Establishment Rules, 2014, for redressal of his grievance. Furthermore, once the Ex-officio Justice of Peace was apprised of the fact that, in compliance with his earlier order dated 26.08.2025, an inquiry had been duly conducted and thereafter lawfully concluded by the competent authority, the said order stood satisfied and fully complied with. In such a situation, the subsequent order dated 27.01.2026, whereby the Director General, Anti-Corruption Establishment, was directed to reopen the inquiry, amounts to a clear overreach of jurisdiction. Such a direction not only encroaches upon the statutory domain of the Anti-Corruption Establishment but also tantamounts to usurping the powers exclusively vested in the said authority under the law, which course is wholly unwarranted and legally unsustainable.

6. For the foregoing reasons, this petition is allowed. Consequently, the impugned orders dated 26.08.2025 and 27.01.2026, passed by the Ex-officio Justice of Peace/Additional Sessions Judge, Lahore, are hereby set aside.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

The order was announced
on 26.03.2026, dictated,
prepared, and signed
on 02.04.2026
Najum*